

Topic 2: Historical Background of the Indian Constitution

2.1 Introduction

- The East India Company arrived in India in 1600 A.D. to trade.
- In 1765, it received rights to collect revenue and administer justice in Bengal, Bihar, and Orissa.
- After the 1857 revolt (Sepoy Mutiny), British Parliament took control from the company.
- British rule continued till 15 August 1947 when India became independent.
- India was divided into:
 - British India – 11 provinces directly ruled by the British.
 - Princely States – ruled by Indian kings but under British control.
- These merged to form the Republic of India.
- Many British administrative and legal systems still exist in India today.
- The need for a written constitution grew stronger after independence, to unify such a diverse country.

2.2 Indian System of Administration

- India follows a Parliamentary system (like the UK).
- There is a President (Head of State) and a Prime Minister (Head of Government).
- Parliament has two houses:
 - Lok Sabha (Lower House) – elected by people.
 - Rajya Sabha (Upper House) – elected by state assemblies.
- It is a Federal System – with separate powers for Central and State Governments.
- Local self-governments like Panchayats and Municipalities also exist.
- Present administration is a mix of unitary and federal features.

2.3 Regulating Act of 1773

- The Regulating Act of 1773 was the **first law made by the British Parliament** to control and manage the work of the **East India Company in India**.
- It made the **Governor of Bengal (Fort William)** the **Governor-General of Bengal**.
- **Warren Hastings** became the **first Governor-General of Bengal**.

- An **Executive Council** was created to help the Governor-General. It had **four members**.
- There was **no separate law-making (legislative) council** at that time.
- The **Governors of Bombay and Madras** were now **under the control** of the **Governor-General of Bengal**.
- A **Supreme Court** was started at **Fort William (Calcutta)**. It was the **highest court** in India at that time.
- **Company employees** were **not allowed** to do **private business** or **take bribes** from Indian people.
- The **Court of Directors** (the head group of the company in Britain) had to **report its income** and working details to the British Government.

2.4 Pitt's India Act of 1784

- It separated the **business (trade)** and **political** work of the East India Company.
- **Court of Directors** managed business matters, and **Board of Control** handled political matters.
- The Governor-General's council was reduced to **3 members**.
- British Government now had **full control over Indian affairs**.
- Indian lands under the company were officially called "**British possessions in India**".
- **Governor's councils** were created in **Madras and Bombay**.

2.5 Charter Act 1813

- The British Parliament **renewed the rule** of the East India Company in India.
- The Company **lost its monopoly** (exclusive rights) over Indian trade — now **others could trade** too.

2.6 Charter Act 1833

- The **Governor-General of Bengal** became the **Governor-General of India**.
- **Lord William Bentinck** became the **first Governor-General of India**.
- The Act also took away legislative powers of Bombay and Madras provinces.
- A **Central Legislative Council** was formed for all of India.
- The East India Company **stopped doing business** and became a **government-only body**.

2.7 Charter Act 1853

- The **law-making (legislative)** and **executive (administrative)** powers of the Governor-General's Council were **separated**.
- The **Legislative Council** was **expanded from 6 to 12 members**.
- 4 members** were chosen by the governments of **Madras, Bombay, Bengal, and Agra**.
- For the first time, **civil service jobs (like IAS)** were opened to **everyone through open competition**

2.8 Government of India Act 1858

- The **British Government (Crown)** took full control of India, ending the rule of the **East India Company**.
- A **Secretary of State for India** was appointed to manage Indian affairs from Britain, helped by a **Council of 15 members**.
- The **Governor-General of India** was now also called the **Viceroy of India**, who would act as the **King/Queen's representative**.
- Lord Canning** became the **first Viceroy of India**.

2.9 Indian Councils Act 1861

- For the **first time, Indians were allowed** to join British councils (as non-official members).
- 3 Indians** were included in the **Legislative Council**.
- Legislative Councils** were set up at the **central and provincial levels**.
- Officially introduced the **portfolio system** (dividing work among council members).
- Gave **Madras and Bombay** their **own powers** to make laws — a step toward **decentralization**.

2.10 Indian Councils Act 1892

- Introduced **indirect elections** (through nomination, not voting).
- Increased the **number of members** in Legislative Councils.
- Gave the councils the power to:

Discuss the **Budget** and **Ask questions** to government officials.

2.11 Indian Council Act 1909 (Morley-Minto Reforms)

- Allowed Indians to take part in elections (though mostly indirect).
- Indians could now:
 - Debate on the budget.
 - Discuss resolutions and ask questions.
- Changed the name of Central Legislative Council to Imperial Legislative Council.
- Increased members from 16 to 60 in the Imperial Legislative Council.
- Muslims were given separate representation through separate electorates.
- For the first time, an Indian (Satyendra Prasad Sinha) was included in the Viceroy's Executive Council (as law member).

2.12 Government of India Act 1919 (Montague-Chelmsford Reforms)

- The powers were **divided between the Central Government and the Provincial Governments** (states).
- A new system called **Diarchy (dual government)** was introduced in provinces:
 - Two types of administrators: **Executive Councillors** (British) and **Ministers** (Indians).
- In this system, **provincial subjects** were split into:
 - **Transferred subjects** – Handled by Indian ministers.
 - **Reserved subjects** – Handled by the British Governor and his team.
- The **Governor** was the head of the province and controlled **reserved subjects** like:
 - Law, finance, land revenue, etc.
- The **Ministers** were in charge of **transferred subjects** like:
 - Education, health, local government, industry, public works, etc.
- These **Ministers were answerable to the people** who elected them through the legislature.
- Ministers were chosen from the **elected members** of the Legislative Council.
- The **Executive Councillors** (British officials) were **not answerable** to the legislature.
- For the first time, two houses were introduced at the center.
- Two houses were:
 - **Legislative Assembly** with 140 members.
 - **Legislative Council** with 60 members.
- A **system of direct elections** was introduced.
- The Act also said that **at least 3 Indians** must be part of the **Viceroy's Executive Council**.

2.13 Government of India Act 1935

- The Act divided powers between the center and provinces into **3 lists**:
 - **Federal List** – 59 subjects for the central government.
 - **Provincial List** – 54 subjects for the state governments.
 - **Concurrent List** – 36 subjects shared by both.
- **Diarchy was removed** at the state level (provinces) and **Provincial Autonomy** was introduced – states got more power.
- However, **Diarchy was introduced at the central level** for the first time.
- **Bicameralism** (two houses in legislature) was introduced in **6 out of 11 provinces**.
- At the state level:
 - **Vidhan Sabha** = Lok Sabha (Legislative Assembly).
 - **Vidhan Parishad** = Rajya Sabha (Legislative Council).
- The Act was applied to **six provinces**: Assam, Bengal, Bombay, Bihar, Madras, and United Provinces (Uttar Pradesh + Uttarakhand).
- A **Federal Court** was set up in Delhi to solve disputes between center and provinces.
 - It had **1 Chief Justice** and up to **6 judges**.
- For the **first time, direct elections** were introduced in India.
- About **10% of Indians got voting rights**.
- **British Parliament** still had **full control** over both central and state legislatures in India.
- A **Federal Railway Authority** was created to manage Indian railways.
- The **Reserve Bank of India (RBI)** was established through this Act.
- The Act was an important step in creating a **responsible government** in India.

2.14 Indian Independence Act 1947

- The Act **ended British rule in India** and declared India an **independent country from August 15, 1947**.
- **Lord Mountbatten** became the **first Governor-General of independent India**.
- **Jawaharlal Nehru** became the **first Prime Minister of India**.
- **Muhammad Ali Jinnah** became the **first Governor-General of Pakistan**.
- The Act **divided India into two countries – India and Pakistan**.
- The Act allowed **Constituent Assemblies** of both India and Pakistan to **create their own constitutions**.
- **Princely states** were given freedom to **join India or Pakistan or remain independent**.